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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
PETER COLON,

Plaintiff

- against -

Index No. _____

Purchased _____

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER DANNY ACOSTA
(Shield No. 31476),
POLICE OFFICER LAURA BARBATO
(Shield No. 9549),
POLICE OFFICER WILSON VERDESOTO
(Shield No. 26997),
POLICE OFFICER GREGORY THUESDAY
(Shield No. 24458),
POLICE OFFICER RAYMOND SANTOS
(Shield No. 29193),
DETECTIVE VICTOR HARRIS
(Tax Reg. No. 88408),
DETECTIVE WILLIAM SIMEON
(Shield No. 06353),
POLICE OFFICER JOHN DOE 1,
POLICE OFFICER JOHN DOE 2 and
POLICE OFFICER JOHN DOE 3,**

Defendants.

SUMMONS

2010 Dec 29 PM 1:02
CLERK
BRONX COUNTY

67114570

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
December 28, 2010



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1J
Bronx, New York 10451
(718) 618-7509

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
PETER COLON,

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER DANNY ACOSTA
(Shield No. 31476),
POLICE OFFICER LAURA BARBATO
(Shield No. 9549),
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(Shield No. 06353),
POLICE OFFICER JOHN DOE 1,
POLICE OFFICER JOHN DOE 2,
POLICE OFFICER JOHN DOE 3,**

Defendants.

-----X

Plaintiff PETER COLON, by his attorney JEFFREY W. RIZZO, ESQ., principal,
complaining of the Defendants, respectfully shows to this Court and alleges the following
upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff PETER COLON ("MR. COLON") was and still is a resident of Bronx County, City and State of New York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, Defendant DANNY ACOSTA (Shield No. 31476), ("ACOSTA") was and still is a Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT ("NYPD").

4. On and prior to October 4, 2009, ACOSTA was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. The actions of ACOSTA described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

6. At all times hereinafter mentioned, Defendant LAURA BARBATO (Shield No. 9549), ("BARBATO") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

7. On and prior to October 4, 2009, BARBATO was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

8. The actions of BARBATO described herein were performed within the scope of her employment and authority and while she acted as an agent, servant and employee of Defendants CITY and NYPD.

9. At all times hereinafter mentioned, Defendant WILSON VERDESOTO (Shield No. 26997), ("VERDESOTO") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

10. On and prior to October 4, 2009, VERDESOTO was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

11. The actions of VERDESOTO described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

12. At all times hereinafter mentioned, Defendant GREGORY THUESDAY (Shield No. 24458), ("THUESDAY") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

13. On and prior to October 4, 2009, THUESDAY was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

14. The actions of THUESDAY described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

15. At all times hereinafter mentioned, Defendant RAYMOND SANTOS (Shield No. 29193), ("SANTOS") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

16. On and prior to October 4, 2009, SANTOS was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

17. The actions of SANTOS described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

18. At all times hereinafter mentioned, Defendant VICTOR HARRIS (Tax Reg. No. 88408), ("HARRIS") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

19. On and prior to October 4, 2009, HARRIS was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

20. The actions of HARRIS described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

21. At all times hereinafter mentioned, Defendant WILLIAM SIMEON (Shield No. 06353), ("SIMEON") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

22. On and prior to October 4, 2009, SIMEON was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

23. The actions of SIMEON described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

24. At all times hereinafter mentioned, Defendant JOHN DOE 1, ("DOE 1") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

25. On and prior to October 4, 2009, DOE 1 was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

26. The actions of DOE 1 described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

27. At all times hereinafter mentioned, Defendant JOHN DOE 2, ("DOE 2") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

28. On and prior to October 4, 2009, DOE 2 was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

29. The actions of DOE 2 described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

30. At all times hereinafter mentioned, Defendant JOHN DOE 3, ("DOE 3") was and still is a Police Officer employed by the Defendant CITY and the NYPD.

31. On and prior to October 4, 2009, DOE 3 was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

32. The actions of DOE 3 described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

33. On or about October 4, 2009, ACOSTA, BARBATO, VERDESOTO, THUESDAY, SANTOS, DOE 1, DOE 2, DOE 3, HARRIS and SIMEON acting as agents, servants and employees of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. COLON of having committed the crime of Criminal Possession of a Weapon in the Second Degree (P.L. § 265.03), Assault in the Second Degree (P.L. § 120.05) and other related charges .

34. On or about October 4, 2009, Defendants, their agents, servants and/or employees, intentionally placed MR. COLON under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

35. On or about October 4, 2009, a criminal complaint was issued at the directive of Defendants, and a criminal action against MR. COLON was commenced.

36. After his arrest on October 4, 2009, MR. COLON was arraigned in Bronx County Criminal Court on October 10, 2009. At that time bail was set by the Court and MR. COLON was remanded to the Department of Corrections on October 10, 2009.

37. MR. COLON remained in the custody of the Department of Corrections until March 8, 2010.

38. On or about March 4, 2010, a "no true bill" was voted by a Grand Jury of Bronx County, at which time the matter was dismissed and sealed. The criminal matter was terminated in favor of MR. COLON, in that all charges were dismissed

39. MR. COLON was released from Department of Corrections custody on March 8, 2010.

40. As a result of the treatment of MR. COLON by the Defendants, MR. COLON was denied liberty by being falsely arrested and imprisoned for approximately one-hundred and fifty-six (156) days.

41. MR. COLON suffered physical and emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for one-hundred and fifty-six (156) days, MR. COLON suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

42. On December 21, 2009, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

43. The original Notice of Claim was executed by MR. COLON'S grandmother and legal guardian, Ms. Rachel McCreary, as MR. COLON had not yet reached the age of majority.

44. Defendant CITY, assigned Claim Number 2010PI004973 and scheduled a hearing pursuant to General Municipal Law (GML) Section 50-h, hereinafter 50-h hearing, for March 9, 2010.

45. MR. COLON, by counsel, requested an adjournment of the 50-h hearing scheduled for March 9, 2010 as MR. COLON was still incarcerated as of March 8, 2010 and his date of release at that time was still unknown.

46. MR. COLON, by counsel, further informed and put Defendant CITY on notice on March 9, 2010 that MR. COLON'S criminal matter was dismissed on March 4, 2010.

47. MR. COLON, also supplemented his original Notice of Claim upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally on July 21, 2010, which supplemental Notice of Claim further advised the Defendant that the criminal matter was dismissed on March 4, 2010 and MR. COLON had been released by the Department of Corrections on March 8, 2010.

48. The supplemental Notice of Claim was executed and verified by MR. COLON, as he had at that time reached the age of majority.

49. Defendant, CITY assigned a second Claim Number 2010PI026922 and rescheduled the 50-h hearing for October 1, 2010.

50. The hearing scheduled for October 1, 2010 was cancelled by Defendant, CITY without notice or explanation to MR. COLON or counsel for MR. COLON.

51. Defendant CITY has made no attempt to reschedule the 50-h hearing.

52. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust the claim.

53. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

54. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE ARREST

55. Paragraphs 1-54 are incorporated by reference as fully set forth herein.

56. On October 4, 2009 at approximately 9:25 pm inside of 1358 Washington Avenue in Bronx County, Defendants ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS, along with other New York City police officers, wrongfully touched, grabbed, handcuffed and seized MR. COLON, in an excessive manner about his person, causing MR. COLON physical pain and mental suffering. Further, ACOSTA using his firearm fired two shots at MR. COLON striking him once in the back. After being shot MR. COLON was shoved, punched and kicked by an unknown number of New York City police officers. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MR. COLON was aware of his arrest and confinement as described in paragraphs 1-54, and he did not consent to that arrest or confinement, nor was it privileged by law.

57. As a result of being falsely arrested by the Defendants, MR. COLON sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately one-hundred and fifty-six (156) days. He also suffered physical injuries, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

58. Paragraphs 1-57 are incorporated by reference as though fully set forth herein.

59. The Defendants, their agents, servants and employees, arrested and confined MR. COLON, as described in paragraphs 1-57, and intended to confine MR. COLON. MR. COLON was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

60. As a result of being falsely imprisoned by the Defendants, MR. COLON sustained multiple injuries, including physical injuries, loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

61. Paragraphs 1-60 are incorporated by reference as though fully set forth herein.

62. In arresting MR. COLON, Defendants, acting in their capacity as agents, servants and employees of Defendants CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

63. In arresting MR. COLON, Defendants including but not limited to ACOSTA, BARBATO, VERDESOTO, THUESDAY, SANTOS, DOE 1, DOE 2, DOE 3, HARRIS and SIMEON acting in their capacity as the agents, servants and employees of Defendants CITY and NYPD, sought either a detriment to MR. COLON or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

64. As a result of the abuse of process by the Defendants, MR. COLON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

65. Paragraphs 1-64 are incorporated by reference as though fully set forth herein.

66. On or about October 4, 2009, and from that time until March 4, 2010 when Plaintiff's case was dismissed by on application of the District Attorney's Office after a "no true bill" was voted by a Bronx County Grand Jury, the Defendants deliberately and maliciously prosecuted Plaintiff, an innocent man without any probable cause whatsoever, by filing or causing a felony complaint to be filed in the Criminal Court of the City of New York, Bronx County and testified falsely before a Grand Jury, for the purpose of falsely accusing Plaintiff of violations of the criminal laws of the State of New York.

67. The Defendants, their agents, servants or employees failed to take reasonable steps to stop the prosecution of Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's Office and provided false and/or incomplete information to a Grand Jury to induce prosecution of Plaintiff.

68. The commencement of these criminal proceedings under Docket No. 2009BX016516 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

69. As a result of being maliciously prosecuted by the Defendants, MR. COLON was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

FIFTH CAUSE OF ACTION ASSAULT AND BATTERY

70. Paragraphs 1-69 are incorporated by reference as though fully set forth herein.

71. On October 4, 2009 at approximately 9:25 pm inside of 1358 Washington Avenue in Bronx County, Defendants ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS, along with other New York City police officers, wrongfully touched, grabbed, handcuffed and seized MR. COLON, in an excessive manner about his person, causing MR. COLON physical pain and mental suffering. Further, ACOSTA using his firearm fired two shots at MR. COLON striking him once in the back. After being shot MR. COLON was shoved, punched and kicked by an unknown number of New York City police officers.

72. That on or about October 4, 2009, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff MR. COLON was intentionally pushed, punched, kicked, shot, assaulted, violated, humiliated and handcuffed by the CITY, NYPD, ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

73. That on or about October 4, 2009 ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. COLON in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. COLON and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched, beat and shot the plaintiff and/or made offensive bodily contact to MR. COLON and caused such battery in and about his head, neck, back, body and limbs. At no time did MR. COLON consent to the aforesaid assault and battery.

74. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the shooting, punching and kicking of MR. COLON, was an assault and battery beyond that which was necessary to make the arrest.

75. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. COLON suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was

otherwise damaged.

76. That as a result of the aforesaid assault and battery MR. COLON was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

SIXTH CAUSE OF ACTION: NEGLIGENCE

77. Paragraphs 1-76 are incorporated by reference as though fully set forth herein.

78. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault and battery were caused by the negligence of the Defendants, their agents, servants and/or employees.

79. As a result of the negligence of the Defendants, MR. COLON sustained multiple injuries, including physical injuries, loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

80. Paragraphs 1-79 are incorporated by reference as though fully set forth herein.

81. Defendants CITY and NYPD, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training ACOSTA, BARBATO, VERDESOTO, THUESDAY, SANTOS as well as all of the other NYPD officers involved in this matter.

82. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, use of force, use of firearms and search and seizure.

83. Defendants CITY and NYPD were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

84. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search, seize, assault and batter Plaintiff.

85. Defendants CITY and NYPD had the responsibility for supervising, disciplining, evaluating and training the police officers involved herein, including ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS.

86. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS.

87. As a result of the negligence of Defendants CITY, NYPD, ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS, MR. COLON sustained multiple injuries, including physical injuries, loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

EIGHTH CAUSE OF ACTION: NEGLIGENT HIRING

88. Paragraphs 1-87 are incorporated by reference as though fully set forth herein.

89. Defendants CITY and NYPD had the responsibility for hiring ACOSTA, BARBATO, VERDESOTO, THUESDAY and SANTOS.

90. Defendants CITY and NYPD were negligent in hiring ACOSTA BARBATO, VERDESOTO, THUESDAY and SANTOS.

91. As a result of the negligence of the Defendants, MR. COLON sustained multiple injuries, including physical injuries, loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
December 28, 2010

Yours, etc.,


JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1J
Bronx, NY 10451
718-618-7509

VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

PETER COLON, being duly sworn, deposes and states that he is the individual Claimant in the within action; that he has read the foregoing Claim and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters he believes them to be true.

Peter Colon
PETER COLON

Sworn to before me, this 28th day of Dec, 2010.

Charles I. Chong
Notary Public

CHARLES I. CHONG
NOTARY PUBLIC-STATE OF NEW YORK
NO. 01CH6125991
Qualified in Bronx County
Commission Expires May 23, 2013

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).


JEFFREY W. RIZZO, ESQ.